

An Act

ENROLLED HOUSE
BILL NO. 4237

By: Kannady and Moore of the
House

and

Gollihare of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 983, as last amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025, Section 983), which relates to court costs and fees; requiring courts to offer certain hearing; modifying cost waiver or reduction exceptions; requiring courts to make certain determination at cost hearing; requiring waiver of cost hearings to satisfy certain conditions; and providing an effective date.

SUBJECT: Criminal procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025, Section 983), is amended to read as follows:

Section 983. A. As used in this section, unless the context otherwise requires:

1. "Cost arrest warrant" means a warrant authorizing arrest that is issued by a court under the following circumstances:

- a. failure to comply with the terms of a court financial obligations payment plan,
- b. failure to appear at a cost hearing or willfulness hearing, or

- c. failure to appear at the office of the court clerk of the county in which the court financial obligation is owed within ten (10) days of being cited by a law enforcement officer to appear;

2. "Cost cite and release warrant" means a warrant issued by a court authorizing citation and release under the following circumstances:

- a. failure to comply with terms of a court financial obligations payment plan, or
- b. failure to appear at a cost hearing or willfulness hearing;

3. "Cost hearing" means a hearing in which the court determines the ability of a defendant to pay court financial obligations. Once a cost hearing date has been set, all court financial obligations shall be suspended until the cost hearing has been held;

4. "Court financial obligation" means all financial obligations including fines, costs, fees, and assessments, imposed by the court or required by law to be paid, excluding restitution or payments to be made other than to the court clerk;

5. "Payment-in-full" means a court financial payment term that requires the defendant to pay the full amount of court financial obligations owed within ninety (90) days of a plea or sentence in the district court or within thirty (30) days of a plea or sentence in the municipal court;

6. "Payment-in-installments" means payment terms for court financial obligations that require the defendant to make monthly payments in any amount until the amount owed is fully paid; and

7. "Willfulness hearing" means a hearing in which the court determines whether a defendant who has previously been found to have the ability to pay court financial obligations has willfully failed to pay the debt.

B. 1. Except in cases provided for in Section 983b of this title, when the judgment and sentence of a court, either in whole or in part, imposes court financial obligations upon a defendant, the court at the time of sentencing ~~may immediately, or at any point thereafter until the debt is either paid or waived,~~ shall offer to

conduct, contemporaneous with sentencing or at a later date, a hearing to determine the ability of a defendant to pay the court financial obligations. The court may make such determinations at a cost hearing or upon written motion or affidavit by the defendant. The ability of a defendant to pay court financial obligations may not impact the sentence imposed.

2. Defendants with court financial obligations who are found by the court to be unable to pay, in whole or in part, or who show sufficient evidence of a presumption pursuant to paragraph 5 of this subsection, shall be relieved of the debt by the court through a hardship waiver of the court financial obligations, either in whole or in part.

3. In determining the ability of a defendant to pay, the court shall consider the following factors:

- a. individual and household income,
- b. household living expenses,
- c. number of dependents,
- d. assets,
- e. child support obligations,
- f. physical or mental health conditions that diminish the ability to generate income or manage resources,
- g. additional case-related expenses to be paid by the defendant, and
- h. any other factors relevant to the ability of the defendant to pay.

4. In determining the ability of a defendant to pay, the following shall not be considered as income or assets:

- a. child support income,
- b. any monies received from a federal, state, or tribal government need-based or disability assistance program, or

- c. assets exempt from bankruptcy.

5. Defendants in the following circumstances are presumed unable to pay and eligible for relief under paragraph 2 of this subsection:

- a. designated as totally disabled by any federal, state, or tribal disability services program including but not limited to military disability, Social Security Disability Insurance, Supplemental Security Income, or tribal disability benefits,
- b. receives support from the Temporary Assistance for Needy Families program, Supplemental Nutrition Assistance Program, the Special Supplemental Nutrition Program for Women, Infants, and Children nutrition education and supplemental food program, or any other federal need-based financial support,
- c. receives subsidized housing support through the Housing Choice Voucher program, the United States Department of Housing and Urban Development, or other state, local, or federal government housing subsidy program, or
- d. total income is below one hundred fifty percent (150%) of the federal poverty level.

C. 1. At the time of a plea or sentencing, the court shall inform the defendant of the total court financial obligations owed, the consequences of failing to pay the court financial obligations, and that the defendant may request a cost hearing if at any time he or she is unable to pay the court financial obligations, at which point the court may waive all or part of the debt owed. If the total amount of court financial obligations owed is not available at the time of the plea or sentencing, the court shall inform the defendant that court financial obligations have been incurred and the time and location where the defendant may learn of the total amount owed.

2. The court shall order the defendant to appear immediately after sentencing at the office of the court clerk to provide current contact information and to either select payment terms or request a cost hearing. Failure to immediately report to the court clerk shall result in the full amount of court financial obligations to be

due thirty (30) days from the date of the plea or sentencing in district courts or thirty (30) days from the date of the plea or sentencing in municipal courts.

3. Payment of court financial obligations may be made under the following terms:

- a. payment in full, or
- b. payment in installments.

Upon any change in circumstances affecting the ability of a defendant to pay, a defendant may request a cost hearing before the court by contacting the court clerk.

4. The district court for each county and all municipal courts shall provide a cost hearing for any defendant upon request, either by establishing a dedicated docket or on an as-requested basis. A defendant who requests a cost hearing will receive a summons by personal service or by United States mail to appear in court as required by subsection G of this section. If a defendant fails to appear for a requested cost hearing, the court may issue either a cost cite and release warrant or a cost arrest warrant. No fees shall be assessed or collected from the defendant as a consequence of either requesting a cost hearing or the issuing of a cost cite and release warrant.

D. In determining the ability of the defendant to pay court financial obligations, the court may rely on testimony, relevant documents, and any information provided by the defendant using a cost hearing affidavit promulgated by the Court of Criminal Appeals. In addition, the court may make inquiry of the defendant and consider any other evidence or testimony concerning the ability of the defendant to pay.

E. 1. If at the initial cost hearing or any subsequent cost hearing, the court determines that the defendant is able to pay some or all of the court financial obligations, the court may order any of the following conditions for payment:

- a. payment in full,
- b. payment in installments,

- c. financial incentive under a set of conditions determined by the court, or
- d. community service in lieu of payment; provided, the defendant shall receive credit for no less than two times the amount of the minimum wage specified pursuant to state law for each hour of community service.

2. Any defendant who fails to comply with the terms of the payment plan ordered by the court shall be considered delinquent and the court may issue either a cost cite and release warrant or a cost arrest warrant.

F. If the court determines that a waiver of any of the court financial obligations is warranted, the court shall apply the same percentage reduction equally to all fines, court costs, fees, and assessments, excluding restitution.

G. 1. A defendant is considered delinquent in the payment of court financial obligations under the following circumstances:

- a. when the total amount due has not been paid by the due date, or
- b. when no installment payments have been received in the most recent ninety-day period.

2. The court clerk shall periodically review cases for delinquency at least once every six (6) months and, upon identifying a delinquent defendant, notify the court which shall, within ten (10) days thereafter, set a cost hearing for the court to determine if the defendant is able to pay. The court shall make an ability to pay determination at such hearing. Any waiver of such hearing shall occur in open court after the defendant is advised of the cost hearing process. The cost hearing shall be set within forty-five (45) days of the issuance of the summons. The hearing shall be set on a date that shall allow the court clerk to issue a summons fourteen (14) days prior to the cost hearing. Defendants shall incur no additional fees associated with the issuance of the summons.

3. At least fourteen (14) days prior to the cost hearing, the court clerk shall issue one summons to the defendant to be served by

United States mail to the mailing address of the defendant on file in the case, substantially as follows:

SUMMONS

You are ORDERED to appear for a COST HEARING at a specified time, place, and date to determine if you are financially able to pay the fines, costs, fees, or assessments or an installment due in Case No. _____.

YOU MUST BE PRESENT AT THE HEARING.

At any time before the date of the cost hearing, you may contact the court clerk and pay the amount due or request in writing or in person prior to the court date, that the hearing be rescheduled for no later than thirty (30) days after the scheduled time.

THIS IS NOT AN ARREST WARRANT. However, if you fail to appear for the cost hearing or pay the amount due, the court may issue a WARRANT and may refer the case to a court cost compliance liaison which will cause an additional administrative fee of up to thirty-five percent (35%) to be added to the amount owed and may include additional costs imposed by the court.

4. Referrals to the court cost compliance program as provided in subsection L of this section shall be made as follows:

- a. courts shall refer a case to the court cost compliance program upon the issuance of a cost arrest warrant,
- b. courts may refer a case to the court cost compliance program upon the issuance of a cost cite and release warrant, or
- c. courts may refer a case to the court cost compliance program without the issuance of a warrant; provided, the defendant is delinquent and has had sufficient notice and opportunity to have a cost hearing.

5. A municipal court, in lieu of mailing the summons provided for in this subsection, may give the summons to the defendant in person at the time of sentencing or subsequent appearance of a specific date, time, and place, not fewer than thirty (30) days nor more than one hundred twenty (120) days from the date of sentencing

to appear for a cost hearing if the court financial obligations remain unpaid.

H. 1. If a defendant is found by a law enforcement officer to have an outstanding cost cite and release warrant, the law enforcement officer shall issue a Warning/Notice to appear within ten (10) days of release from detention on the warrant to the court clerk of the court in which the court financial obligations are owed. If the officer has the necessary equipment, the officer shall immediately transmit the Warning/Notice electronically to the court clerk of the court in which the court financial obligations are owed. The law enforcement officer shall not take the defendant into custody on the cite and release warrant. If the law enforcement officer is unable to transmit the Warning/Notice electronically to the court clerk, the officer shall inform the appropriate department staff member within the agency of the law enforcement officer of the Warning/Notice within five (5) days. The department staff member shall then promptly notify the law enforcement agency in the jurisdiction that issued the warrant electronically who shall promptly notify the court clerk. The electronic communication shall be treated as a duplicate original for all purposes in any subsequent hearings before the appropriate court.

2. If the defendant reports to the office of the court clerk within the ten (10) days, the court clerk shall:

- a. inform the court of the Warning/Notice to the defendant and contact,
- b. schedule a cost hearing pursuant to applicable local court rule, and
- c. submit the warrant to the court for recall pending the cost hearing.

3. If the defendant fails to report to the office of the court clerk within the ten (10) days, the court may issue a cost arrest warrant for the arrest of the defendant.

4. Following an arrest on a cost arrest warrant, the defendant must be released after seventy-two (72) hours in custody. The defendant may be released prior to seventy-two (72) hours if:

- a. the custodian is presented with proof of payment in the amount of One Hundred Dollars (\$100.00) to each

jurisdiction where the court financial obligations are owed and the new cost hearing date is provided,

- b. the court releases the defendant on the defendant's own recognizance and a new cost hearing date is provided, or
- c. the court conducts a cost or willfulness hearing, as appropriate, pursuant to the provisions of this section and determines the defendant should be released.

5. The provisions for issuing a separate summons described in subsection G of this section shall not apply to a municipal court if the municipal court has previously provided actual personal notice to the defendant of an opportunity for a cost hearing. If such notice was given and the defendant fails to appear, the municipal court may issue either a cost cite and release warrant or a cost arrest warrant.

6. All warrants for failure to appear at a cost hearing or for failure to pay court financial obligations which have been issued prior to the effective date of this act and which remain unserved, shall be treated as cost cite and release warrants. All warrant fees assessed for warrants for failure to appear at a cost hearing or for failure to pay court financial obligations issued prior to the effective date of this act shall remain in effect unless waived by the court.

I. Supporting documents in a motion or affidavit for relief from court financial obligation debt or any documents taken into evidence during a cost hearing or willfulness hearing shall not be viewable by the public on a court-controlled website.

J. 1. After a cost hearing where a defendant is found able to pay a court financial obligation, either in whole or in part, and then becomes delinquent in that payment, a court may conduct a willfulness hearing at any time beginning immediately after a cost hearing has been held and a decision rendered on the court financial obligations. Findings of a defendant's prior ability to pay may be considered as evidence of ability to pay or willfulness at the hearing. The requirements of this paragraph shall not be construed to prohibit the court from holding subsequent cost hearings on the same court financial obligations.

2. At a willfulness hearing, the court shall evaluate the following:

- a. whether a cost hearing has been held previously where evidence relating to ability to pay was presented and the court found the defendant was able to pay the court financial obligations, either in whole or in part,
- b. whether there is any new evidence of ability to pay not previously considered or a change in circumstances since the cost hearing,
- c. whether the defendant was afforded sufficient time and opportunity to fulfill the obligation to pay the court financial obligations,
- d. whether the defendant made any efforts to satisfy the court financial obligations, and
- e. whether there are any other relevant facts or circumstances.

3. After a finding of willful failure to pay court financial obligations, the court may impose a jail sentence pursuant to Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence may be imposed only under the following circumstances:

- a. the hearing is conducted on the record pursuant to the rules promulgated by the Court of Criminal Appeals, and
- b. the defendant is represented by counsel or expressly waives his or her right to counsel.

4. If a jail sentence is imposed, the court may grant credit for any time already served. At any time after incarceration, the jail sentence may be satisfied upon payment in full of the outstanding balance with credit for any time already served.

K. The district court or municipal court, within one hundred twenty (120) days from the date upon which the person fails to comply with the financial obligation as ordered by the court or fails to appear for the offered cost or willfulness hearing, may, if the defendant has previously been notified of the possibility of a

suspension, send notice of nonpayment of any court-ordered financial obligation for a moving traffic violation to Service Oklahoma with a recommendation of suspension of driving privileges of the defendant until the total amount of any court financial obligation has been paid or waived by the court. Upon receipt of payment of the total amount of the court financial obligations for the moving traffic violation, the court shall send notice thereof to Service Oklahoma, if a nonpayment notice was sent as provided for in this subsection. Notices sent to Service Oklahoma shall be on forms or by a method approved by Service Oklahoma.

L. Every county and district court of this state shall fully utilize and participate in the court cost compliance program. Cases shall be referred to the court cost compliance program no more than sixty (60) days after the court has ordered the referral pursuant to paragraph 4 of subsection G of this section, unless the defendant pays the amount owed on the court financial obligation or an installment due. When the court refers a case, the updated contact information on file shall be forwarded to a court cost compliance liaison for collection purposes.

M. The Court of Criminal Appeals shall implement procedures and rules for implementation of the requirements of this section. Such procedures, rules, and any supplemental forms may be made available by the Administrative Office of the Courts.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____